

Pravesh Kumar v. State of U.P. and Another

Allahabad High Court · Division Bench · 9 December 2024 · 2024:AHC:192241-DB · Writ - C No. 31835 of 2024 · **Writ dismissed as infructuous after the petitioner deposited the entire amount; the recovery notice was not decided**

HEADNOTE

Pravesh Kumar challenged a notice dated 20 April 2024 issued by respondent no. 2. The licensee's instructions showed a provisional-assessment notice sent on 1 March 2024, fixing 16 March 2024 for hearing, and no order of final assessment, only a recovery notice treating the provisional assessment as final. The Division Bench recorded that the procedure under the U.P. Electricity Supply Code, 2005 is to be strictly followed, that the Managing Director of the Discom had issued a circular to that effect, and that the Executive Engineer appeared not to have followed it. Recovery on the impugned notice was kept in abeyance, and the Managing Director was directed to examine whether the recovery notice was procedurally irregular and to file an affidavit. On 9 December 2024, after that affidavit was filed, counsel stated that the petitioner had deposited the entire amount and that the petition had become infructuous. The petitioner's counsel agreed. The writ was dismissed as infructuous. The Court did not decide the notice dated 20 April 2024, the assessment, or whether the Supply Code procedure had in fact been breached.

FACTUAL SUMMARY

Pravesh Kumar filed Writ-C No. 31835 of 2024 to set aside the notice dated 20 April 2024 of respondent no. 2. The respondents are the State of U.P. and another. The contesting respondent is the electricity department and the concerned Discom; the orders name neither the licensee nor any connection or amount.

After an adjournment on 23 September 2024, instructions showed a provisional-assessment notice sent on 1 March 2024, fixing 16 March 2024 for hearing. The papers contained no final-assessment order, only a recovery notice treating the provisional assessment as final. The Court said the U.P. Electricity Supply Code, 2005 procedure had to be strictly followed, noted the Managing Director's circular, and observed that the Executive Engineer appeared not to have followed it. Recovery was kept in abeyance, and the Managing Director was directed to examine the irregularity and file an affidavit. That affidavit was still absent on 18 November 2024. On 9 December 2024, after it was filed, counsel stated that the petitioner had deposited the entire amount. The petitioner's counsel agreed, and the writ was dismissed as infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::(*unspecified*)

Recovery kept in abeyance where the papers show no final-assessment order, only a notice treating the provisional assessment as final

QUESTION

What interim order follows when the licensee's instructions show a provisional-assessment notice but no final-assessment order, and recovery is pressed by treating the provisional assessment as final?

HOLDING

On the order sheet dated 18.10.2024 the Court recorded instructions from respondent no. 2 that a provisional-assessment notice was sent on 1.3.2024 fixing 16.3.2024 for hearing, and that the documents comprised no order of final assessment, only a notice for recovery treating the provisional assessment as final. It observed that the procedure prescribed under the U.P. Electricity Supply Code, 2005 is to be strictly followed, that the Managing Director of the Discom had issued a circular in that regard, and that the concerned Executive Engineer seemed to have failed to observe that procedure. It directed that the matter be placed before the Managing Director to examine whether issuing the recovery notice was procedurally irregular and to file an affidavit of the complete facts, and ordered that recovery on the impugned recovery notice remain in abeyance in the meanwhile. The direction was interlocutory. On 9.12.2024 the writ was dismissed as infructuous without deciding the notice dated 20.4.2024. ¶ 1-6 of the order dated 18.10.2024

QUALIFIER

Interlocutory only. The 9.12.2024 dismissal did not quash or uphold the notice, and it did not continue the abeyance in terms.

FLAG The order sheet is dated 18.10.2024 (Manoj Kumar Gupta and Vikas Budhwar, JJ.). The order of 18.11.2024 quotes that order as dated 08.10.2024. The Court named the U.P. Electricity Supply Code, 2005 and cited no clause; not keyed to Clause 6.8 or 8.1, because the order does not say whether the demand was unauthorised use or theft. The Managing Director's circular is referred to and not reproduced or dated. No precedent is named. The 23.9.2024 sitting (Manoj Kumar Gupta and Kshitij Shailendra, JJ.) only adjourned the writ to 03.10.2024 as a fresh case. On 18.11.2024 (Vivek Kumar Birla and Dr. Yogendra Kumar Srivastava, JJ.) the Managing Director's affidavit was still absent, time was granted, and the case was listed for 09.12.2024. The Discom is not named.

HOLDING-UNIT · OFFTOPIC::writ-discretion-no-case-made-out-infructuous

Writ to set aside a recovery notice dismissed as infructuous once the petitioner has deposited the entire amount

QUESTION

Does a writ to set aside an electricity recovery notice survive once both sides agree that the petitioner has deposited the entire amount and that the petition has become infructuous?

HOLDING

No. On 9.12.2024, pursuant to the order dated 18.11.2024, the personal affidavit of the Managing Director was taken on record. Counsel for respondent no. 2 stated that the petitioner had deposited the entire amount and that the petition had become infructuous. Counsel for the petitioner agreed. The Division Bench dismissed the petition as having become infructuous. It did not decide the notice dated 20.4.2024, did not record the amount deposited, and did not decide whether a final assessment had been passed or whether the Supply Code procedure had been followed. No liberty to move afresh was reserved.

¶ 2-5 of the order dated 9.12.2024

QUALIFIER

No merits. The Court did not hold that no case for interference was made out. Dismissal rested on the agreed statement that the petition had become infructuous.

FLAG Operative order, Neutral Citation No. 2024:AHC:192241-DB (Vivek Kumar Birla and Dr. Gautam Chowdhary, JJ.). The prayer, in para 2, is to set aside the notice dated 20.4.2024 issued by respondent no. 2. The affidavit is taken on record; its contents are not set out. The catalog key is the nearest infructuous-dismissal bucket; the order does not say that no case was made out.

PRINCIPLE TAGS

interim-stay-of-electricity-recovery-pending-final-assessment On the order sheet dated 18.10.2024, recording a provisional-assessment notice of 1.3.2024 and no final-assessment order, only a recovery notice treating the provisional assessment as final, the Court kept recovery on the impugned notice in abeyance and directed the Managing Director to examine the procedural irregularity under the U.P. Electricity Supply Code, 2005. The abeyance was interlocutory. On 9.12.2024 the writ was dismissed as infructuous without deciding the notice dated 20.4.2024. ¶ 1-6 of the order dated 18.10.2024

writ-dismissed-as-infructuous-entire-amount-deposited Counsel for the Discom stated that the petitioner had deposited the entire amount and that the writ had become infructuous. The petitioner's counsel agreed. The Division Bench dismissed the petition. It reserved no liberty to move afresh and did not decide the notice dated 20.4.2024 or the assessment. ¶ 3-5 of the order dated 9.12.2024

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NOTICE DATED 20.4.2024 WAS INVALID BECAUSE THE PAPERS CONTAINED NO FINAL-ASSESSMENT ORDER AND RECOVERY TREATED THE PROVISIONAL ASSESSMENT AS FINAL Recorded on 18.10.2024 and referred to the Managing Director for examination. The 9.12.2024 order dismissed the writ as infructuous without a finding. ¶ 1-3 of the order dated 18.10.2024; 5 of the order dated 9.12.2024

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER FAILED TO FOLLOW THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHAT THE MANAGING DIRECTOR'S AFFIDAVIT AND CIRCULAR SHOWED

The Court said it seemed the Executive Engineer had not followed the prescribed procedure, and that the Managing Director had issued a circular. The affidavit was taken on record on 9.12.2024. Neither the affidavit nor the circular is

set out, and no finding was made. No clause number was cited.
¶ 2-3 of the order dated 18.10.2024; 3-5 of the order dated 9.12.2024

NOT DECIDED — WHETHER THE ABEYANCE OF RECOVERY ORDERED ON 18.10.2024 SURVIVED THE DISMISSAL

The 9.12.2024 order does not continue or vacate the abeyance.
¶ 6 of the order dated 18.10.2024; 5 of the order dated 9.12.2024

NOT DECIDED — THE AMOUNT DEPOSITED, AND THE CONNECTION TO WHICH THE NOTICE RELATED

Counsel said the entire amount had been deposited. No figure, connection number, or mode of deposit is recorded.
¶ 3-4 of the order dated 9.12.2024